

LOCAL NEWS

# Denver dumps Flock, awards location tracking camera contract to Axon

The decision follows controversy with Flock, a company whose relationship quickly soured with Denver City Council members.

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DENVER — Denver is getting rid of its controversial automated license plate reading (ALPR) camera vendor Flock Safety, choosing to award its new ALPR contract to Axon, the Denver Mayor's office announced on Tuesday.

The decision caps a year-long chapter of controversy with Flock, a company whose relationship soured with Denver City Council members and continued to deteriorate.

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and Mayor Mike Johnston's office was planning to issue an informal request for proposals.

While the city did not disclose who applied for the contract, sources told 9NEWS that Axon and Motorola were expected to compete with Flock for the contract.

The city's contract with Flock expires at the end of March. Unlike the two previous contract extensions, [which Johnston executed unilaterally](#), bypassing the city council, the mayor's office has indicated the new contract will require council approval.

In an interview with 9NEWS on Tuesday, Johnston said the contract change was in response to public feedback.

"We think this allows us to get a win-win of both protecting civil liberties and keeping the city safe at the same time," Johnston said.

The breakdown between Denver and Flock followed a series of 9NEWS investigations that revealed the company placed Denver's tracking data on a national network accessible to law enforcement agencies that assisted immigration enforcement, and after 9NEWS uncovered the company had a secret partnership with the U.S. Border Patrol.

Flock CEO Garrett Langley told 9NEWS in July that [the company had no federal contracts](#), a claim that angered council members after 9NEWS learned through public records requests that [Flock had given Border Patrol access to tracking data in Colorado](#) through that previously undisclosed pilot program. [Flock later admitted the arrangement existed](#).

Council President Amanda Sandoval said Langley had lied to her directly.

"I had an apology email from the CEO of Flock because he lied to my face," Sandoval said. "I have a lot of concern about this vendor, and I have a lot of concern about integrity."

Despite the controversy, Johnston extended Denver's Flock contract twice without city council approval, [first last summer](#), and [again in October](#), describing the cameras as a critical public safety tool. The October extension came with what Johnston called unprecedented privacy protections, including a \$100,000-per-violation penalty against Flock for data misuse and restrictions barring federal agencies from accessing Denver's camera data.

Despite those protections, Denver City Auditor Tim O'Brien announced last Friday that [he could not, in good conscience, countersign the city's contract with Flock](#), citing concerns that its terms on sharing and accessing personal identifying information opened the city to legal liability. Colorado law classifies license plates as personally identifiable information and prohibits sharing that data for immigration enforcement purposes. The mayor's office said previously [that it did not matter whether the auditor signed the contract](#).

Flock confirmed it submitted a new proposal to the city as part of the informal bidding process, but the company faced steep odds of winning back the contract, given council members' vocal opposition.

One source close to the situation told 9NEWS that Flock's path back was essentially closed.

"It would be a hell of a challenge for Flock to get back on council's good graces," the source said earlier this month. "And I haven't seen anything that would indicate that's going to happen."

Axon and Flock had previously been integrating their technologies before a public split last year, when Axon launched its own competing automated license plate reader product. Unlike Flock, Axon has said it does not operate a national data-sharing network like the one that exposed Denver's data to federal immigration enforcement agencies.

Axon already provides body cameras and tasers for the City of Denver.

"We've trusted that data with them, and it's been used effectively, and explicitly, Axon does not have a national network of cameras that does what Flock does in terms of that database," Johnston said.

Johnston said Axon will have stronger security protections, but the company does have multiple contracts with the Department of Homeland Security.

"What Axon has used data for, how they store it safely, and their design is built for a Denver-only network," Johnston said. "We don't want a national network."

Security technology researcher Benn Jordan, who has [documented security vulnerabilities in Flock's system](#) and has spoken with city council aides, has cautioned that switching vendors may not resolve the underlying concerns about automated license plate reader systems.

"I wouldn't see moving to Axon as an improvement from Flock Safety," Jordan said.

Jordan noted that both companies offer similar data-collecting systems capable of livestreaming video and identifying a vehicle's make, model, and color — going beyond simply reading a plate.

"They make money off of data," Jordan said.

Flock operates thousands of license plate reading cameras for law enforcement agencies nationwide. In Denver alone, 111 cameras are deployed throughout the city.



*Credit: Aaron - stock.adobe.com*

**Flock Safety camera**

